

SOFTWARE-AS-A-SERVICE AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Software-as-a-Service Agreement ("**Agreement**") is entered into on **24 September 2026** ("**Effective Date**").

BETWEEN

SECUREBRIDGE ANALYTICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India, hereinafter referred to as the "**Provider**";

AND

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India, hereinafter referred to as the "**Customer**".

The Provider and Customer are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. PURPOSE

The Provider operates a cloud-based healthcare analytics platform known as **SecureBridge Health Analytics Cloud**("Platform").

The Customer wishes to subscribe to the Platform to support its hospital-management and pharmacy-management operations.

The Provider agrees to provide the Customer with access to the Platform and related support services subject to the terms of this Agreement.

2. DEFINITIONS

2.1 "Platform"

Means the Provider's hosted software application identified in the applicable Order Form, including associated features and functionality made available to the Customer.

2.2 "Subscription"

Means the Customer's right to access and use the Platform during the applicable Subscription Term.

2.3 "Authorised User"

Means an employee, contractor or other authorised individual permitted by the Customer to access the Platform under the applicable Subscription.

2.4 "Customer Data"

Means data, information, records and materials submitted to or generated within the Platform by or on behalf of the Customer.

2.5 "Order Form"

Means an ordering document specifying the Subscription plan, number of users, fees, Subscription Term and other commercial details.

2.6 "Documentation"

Means user guides, technical documentation and other materials made available by the Provider regarding the Platform.

2.7 "Service Level"

Means the availability and support commitments described in **Schedule 2**.

2.8 "Confidential Information"

Means non-public information disclosed by one Party to the other Party that is confidential by nature or identified as confidential.

3. SUBSCRIPTION GRANT

Subject to payment of applicable fees and compliance with this Agreement, the Provider grants the Customer a:

limited, non-exclusive, non-transferable, non-sublicensable right

during the Subscription Term to access and use the Platform solely for the Customer's internal business purposes and authorised customer-facing operations specified in the applicable Order Form.

The Subscription does not transfer ownership of the Platform or any Provider intellectual property to the Customer.

4. AUTHORISED USERS

The Customer may permit the number of Authorised Users specified in the applicable Order Form to access the Platform.

The Customer shall:

- maintain appropriate user-access controls;

- ensure that user credentials are not shared;
- promptly disable access for unauthorised or departing personnel; and
- remain responsible for activities conducted through its Authorised User accounts, except to the extent caused by the Provider's breach or security failure.

The Customer may request additional user licences subject to applicable fees.

5. ACCEPTABLE USE

The Customer shall not:

- a. use the Platform for unlawful purposes;
- b. attempt to gain unauthorised access to the Platform;
- c. interfere with Platform security or availability;
- d. introduce malicious code;
- e. reverse engineer, decompile or disassemble the Platform except to the extent such restriction is prohibited by applicable law;
- f. resell or sublicense access to the Platform unless expressly authorised;
- g. use the Platform to develop a directly competing product through unauthorised access to the Provider's proprietary technology; or
- h. circumvent usage limitations or access controls.

The Provider shall not interpret this clause to prohibit lawful security testing, interoperability activities or other activities that cannot legally be restricted.

6. PLATFORM AVAILABILITY

The Provider shall use commercially reasonable efforts to maintain the Platform's availability in accordance with the Service Level set out in Schedule 2.

Scheduled maintenance shall be communicated to the Customer in reasonable advance where practicable.

Emergency maintenance may be performed without advance notice where reasonably necessary to protect the security, integrity or availability of the Platform.

7. SERVICE LEVEL AGREEMENT

The Provider shall target **99.5% monthly uptime** for the production Platform, excluding:

- scheduled maintenance;
- emergency maintenance;
- force majeure events;
- failures caused by Customer systems;
- failures caused by third-party services outside the Provider's reasonable control; and
- misuse or unauthorised modification by the Customer.

Service-level credits, where applicable, shall be calculated in accordance with Schedule 2.

8. SUPPORT SERVICES

The Provider shall provide technical support through the support channels specified in the Order Form.

Support shall include:

- incident investigation;
- troubleshooting;
- technical assistance;
- bug resolution;
- account assistance; and
- reasonable guidance concerning Platform functionality.

Support does not include development of new features unless separately agreed.

9. SUPPORT PRIORITIES

Priority	Description	Initial Response
P1 – Critical	Platform unavailable or critical business function unusable	1 hour
P2 – High	Major functionality materially affected	4 hours
P3 – Medium	Limited functionality affected	1 business day
P4 – Low	General question or minor issue	2 business days

Response times apply during the support hours specified in Schedule 2 unless otherwise stated.

10. CUSTOMER DATA

The Customer retains all right, title and interest in Customer Data.

The Provider shall process Customer Data only:

- to provide the Platform;
- to provide support;
- to maintain security;
- to prevent fraud or misuse; or
- as otherwise authorised by the Customer or required by law.

The Provider shall not sell Customer Data.

The Provider shall not use identifiable Customer Data to train general-purpose AI models without the Customer's prior written authorisation.

11. DATA PROTECTION

Where the Provider processes personal data on behalf of the Customer, the Parties shall comply with applicable data-protection laws.

The Provider shall:

- a. process personal data only on authorised instructions;
- b. maintain appropriate technical and organisational safeguards;
- c. restrict access to authorised personnel;
- d. assist reasonably with legally required data-subject requests where applicable;
- e. maintain appropriate records concerning processing where required; and
- f. notify the Customer without undue delay of a material personal-data breach affecting Customer Data.

Where required, the Parties shall execute a separate data-processing agreement.

12. DATA SECURITY

The Provider shall maintain reasonable security controls appropriate to the nature of the Platform and Customer Data.

Such controls shall include, where appropriate:

- encryption in transit;
- encryption at rest;
- access controls;
- multi-factor authentication for privileged accounts;
- logging and monitoring;
- vulnerability management;
- secure software development;
- backup and recovery procedures; and
- incident-response procedures.

13. SECURITY INCIDENTS

If the Provider becomes aware of a security incident materially affecting Customer Data or the Platform, it shall:

- a. investigate the incident;
- b. take reasonable steps to contain and remediate it;
- c. notify the Customer without undue delay; and
- d. provide reasonably available information necessary for the Customer to assess the impact and comply with applicable legal obligations.

The Provider shall provide reasonable updates while material remediation activities remain ongoing.

14. DATA LOCATION AND SUBPROCESSORS

The Provider may use third-party infrastructure and service providers to host or support the Platform.

The Provider shall remain responsible for its approved subprocessors' performance of obligations relating to Customer Data.

Where legally or contractually required, the Provider shall provide the Customer with information concerning material subprocessors.

The Provider shall implement reasonable contractual and security requirements for subprocessors that process Customer Data.

15. DATA BACKUP

The Provider shall maintain reasonable backup and recovery procedures appropriate to the Platform.

Backups shall be maintained primarily for business continuity and disaster recovery purposes.

The Provider shall use reasonable efforts to restore Customer Data following a material service disruption.

16. DATA EXPORT

During the Subscription Term, the Customer may export its Customer Data using functionality made available by the Platform or through a reasonable Provider-assisted export process.

Following termination, the Provider shall make Customer Data available for export for **30 days**, subject to the applicable terms of this Agreement.

Additional data-extraction services requiring substantial manual work may be subject to reasonable additional fees.

17. DATA DELETION

Following expiry or termination of the Agreement, the Provider shall delete Customer Data from active production systems within a reasonable period, subject to:

- legally required retention;
- backup-cycle requirements; and
- documented security or compliance obligations.

Customer Data retained for legal or backup purposes shall remain subject to applicable confidentiality and security obligations.

18. INTELLECTUAL PROPERTY

The Provider retains all right, title and interest in:

- the Platform;
- software code;
- architecture;
- algorithms;
- interfaces;
- documentation;
- templates;
- methodologies;
- designs; and
- other Provider intellectual property.

Except for the limited Subscription rights expressly granted, no intellectual-property rights are transferred to the Customer.

19. CUSTOMER MATERIALS

The Customer retains ownership of:

- Customer Data;
- Customer trademarks;

- Customer content;
- Customer software; and
- other Customer intellectual property.

The Customer grants the Provider a limited right to process and use such materials solely as necessary to provide the Platform and Services.

20. AGGREGATED AND DE-IDENTIFIED DATA

The Provider may create aggregated or de-identified statistical information derived from Platform usage, provided that such information:

- a. does not identify the Customer or an identifiable individual;
- b. cannot reasonably be used to reconstruct Customer Data; and
- c. does not disclose the Customer's Confidential Information.

Such information may be used for service improvement, analytics and operational purposes.

21. THIRD-PARTY INTEGRATIONS

The Platform may support integration with third-party systems.

The Provider shall not be responsible for the availability, functionality or security of third-party systems outside its reasonable control.

Where an integration fails due to a third-party change, the Provider shall use reasonable efforts to identify the issue and, where commercially reasonable, provide an alternative solution.

22. CUSTOMER RESPONSIBILITIES

The Customer shall:

- provide accurate information;
- maintain appropriate user credentials;
- ensure Authorised Users comply with this Agreement;
- maintain required third-party licences;
- configure the Platform appropriately;
- provide reasonable cooperation for support; and
- ensure that Customer Data is lawfully collected and processed.

The Customer remains responsible for the accuracy and legality of Customer Data.

23. FEES AND BILLING

The Customer shall pay the Subscription fees specified in the applicable Order Form.

Unless otherwise stated:

- fees are exclusive of applicable taxes;
 - invoices shall be issued annually in advance;
 - undisputed invoices shall be payable within **30 days**; and
 - additional user licences shall be charged at the applicable rates.
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24. PRICE CHANGES

The Provider may modify Subscription fees upon renewal by providing at least **60 days' prior written notice**.

No price increase shall apply to a prepaid Subscription period unless expressly agreed.

25. SUSPENSION

The Provider may temporarily suspend access where reasonably necessary to:

- prevent a security threat;
- prevent unlawful use;
- protect Platform integrity;
- address material misuse; or
- comply with a legal requirement.

Where practicable, the Provider shall provide advance notice and allow the Customer an opportunity to remedy the issue.

The Provider shall use reasonable efforts to limit suspension to the affected users or functionality.

26. WARRANTIES

The Provider warrants that:

- a. it has authority to provide the Platform;
- b. the Platform will materially conform to its applicable Documentation;
- c. it shall provide the Services with reasonable skill and care; and

d. it shall comply with applicable laws relating to its provision of the Platform.

The Customer's exclusive remedy for a material breach of the Platform warranty shall be correction or re-performance where reasonably possible.

27. INTELLECTUAL PROPERTY INFRINGEMENT

The Provider shall defend and indemnify the Customer against third-party claims alleging that authorised use of the Platform infringes a third party's intellectual-property rights.

The Provider may:

- a. obtain the right for the Customer to continue using the Platform;
- b. modify or replace the affected functionality with a substantially equivalent alternative; or
- c. terminate the affected Subscription and refund prepaid fees attributable to the unused period.

This obligation shall not apply to claims arising from:

- unauthorised modifications;
 - combinations with technology not supplied or approved by the Provider;
 - Customer Materials; or
 - use outside the authorised scope.
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28. INDEMNIFICATION

Subject to this Agreement, the Provider shall indemnify the Customer against third-party claims arising from:

- IP infringement by the Platform;
- bodily injury or property damage caused by Provider negligence or wilful misconduct; and
- fraud or wilful misconduct by the Provider.

The Customer shall indemnify the Provider against third-party claims arising from:

- unlawful Customer Data;
 - Customer Materials that infringe third-party rights; or
 - Customer's material misuse of the Platform.
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29. CONFIDENTIALITY

Each Party shall protect the other's Confidential Information using reasonable safeguards.

Confidential Information shall be used only for purposes connected with this Agreement.

The receiving Party shall disclose Confidential Information only to persons with a legitimate need to know and appropriate confidentiality obligations.

These obligations shall survive termination for **three (3) years**, except for trade secrets, which shall remain protected for so long as they qualify as trade secrets under applicable law.

30. LIMITATION OF LIABILITY

To the maximum extent permitted by law, neither Party shall be liable for indirect, incidental, special or consequential damages.

Subject to the exclusions below, each Party's aggregate liability shall not exceed the total Subscription fees paid or payable during the **12 months preceding the event giving rise to the claim**.

The liability cap shall not apply to:

- fraud;
 - wilful misconduct;
 - unauthorised disclosure of Confidential Information;
 - infringement or misappropriation of intellectual property rights;
 - the Customer's payment obligations; or
 - liabilities that cannot legally be limited.
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31. INSURANCE

The Provider shall maintain insurance appropriate to the nature of the Platform and Services, including, where commercially appropriate:

- technology errors and omissions insurance;
- cyber liability insurance; and
- commercial general liability insurance.

Evidence of relevant coverage shall be provided upon reasonable request.

32. AUDIT AND COMPLIANCE

The Customer may reasonably request documentation demonstrating compliance with material security, data-protection and contractual obligations.

Any audit shall:

- be conducted on reasonable notice;
- occur during normal business hours;

- minimise operational disruption; and
- protect confidential and security-sensitive information.

Where independent certification or audit reports are available, the Provider may satisfy reasonable audit requests by providing such reports.

33. TERM AND RENEWAL

The initial Subscription Term shall be **one (1) year**.

Unless otherwise specified in the Order Form, the Subscription shall automatically renew for successive one-year periods unless either Party provides at least **30 days' written notice** of non-renewal.

34. TERMINATION FOR BREACH

Either Party may terminate this Agreement if the other Party commits a material breach and fails to cure such breach within **30 days** after receiving written notice.

The Customer may terminate immediately where the Provider:

- commits fraud or wilful misconduct;
 - materially compromises Customer Data through negligent or unauthorised conduct; or
 - becomes insolvent, subject to applicable law.
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35. TERMINATION FOR CONVENIENCE

Unless otherwise specified in the Order Form, either Party may terminate the Agreement for convenience upon **60 days' written notice** following completion of the initial Subscription Term.

Prepaid fees shall be treated in accordance with the applicable Order Form and termination terms.

36. EFFECT OF TERMINATION

Upon termination:

- a. the Customer's right to access the Platform shall cease on the effective termination date;
- b. the Customer shall pay undisputed amounts due up to termination;
- c. the Provider shall make Customer Data available for export in accordance with Section 16;

- d. the Provider shall delete Customer Data in accordance with Section 17; and
 - e. provisions intended by their nature to survive shall remain effective.
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37. TRANSITION ASSISTANCE

Upon request, the Provider shall provide reasonable transition assistance for up to **30 days** following termination.

Transition assistance may include:

- data export;
- technical documentation;
- configuration information;
- knowledge-transfer sessions; and
- reasonable cooperation with migration.

Additional transition services may be charged at mutually agreed rates unless termination resulted from the Provider's uncured material breach.

38. FORCE MAJEURE

Neither Party shall be liable for delay or failure caused by circumstances beyond its reasonable control.

The affected Party shall notify the other Party and take reasonable steps to mitigate the impact.

Force majeure shall not excuse payment obligations for Services already provided.

39. ASSIGNMENT

Neither Party may assign this Agreement without prior written consent of the other Party, except to a successor entity in connection with a merger, restructuring or sale of substantially all relevant assets.

40. GOVERNING LAW

This Agreement shall be governed by the laws of **India**.

Subject to Section 41, courts having competent jurisdiction at **Bengaluru, Karnataka** shall have jurisdiction.

41. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith negotiations between authorised senior representatives.

If a dispute remains unresolved for **30 days**, either Party may refer the dispute to arbitration under the **Arbitration and Conciliation Act, 1996**.

Unless otherwise agreed:

- the seat shall be Bengaluru, India;
- proceedings shall be conducted in English; and
- the tribunal shall consist of one mutually appointed arbitrator.

Either Party may seek urgent interim relief from a competent court.

42. NOTICES

Formal notices shall be provided in writing by recognised courier, registered post or email to the authorised contact details designated by the Parties.

43. ENTIRE AGREEMENT

This Agreement, together with applicable Order Forms and Schedules, constitutes the entire agreement between the Parties concerning the SaaS Services.

It supersedes prior discussions concerning the same subject matter.

44. AMENDMENTS

Any amendment to this Agreement must be made in writing and signed by authorised representatives of both Parties.

45. SEVERABILITY

If any provision is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

46. WAIVER

Failure or delay to exercise a right shall not constitute a waiver.

Any waiver must be expressly provided in writing.

47. ELECTRONIC EXECUTION

This Agreement may be executed electronically and in counterparts to the extent permitted by applicable law.

SIGNATURES

FOR SECUREBRIDGE ANALYTICS PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

FOR MEDINOVA TECHNOLOGIES PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

SCHEDULE 1 — ORDER FORM

SaaS Product

SecureBridge Health Analytics Cloud – Enterprise Plan

Subscription

Item	Details
Subscription Type	Enterprise
Authorised Users	100
Initial Term	12 months
Hosting	Cloud-hosted
Territory	India
Support	Standard Enterprise Support
Implementation	Included
Data Export	Included
Training	Up to 3 online sessions

Permitted Use

The Customer may use the Platform for:

- internal operational analytics;
- hospital and pharmacy reporting;
- business intelligence;
- authorised customer-facing analytics; and
- management reporting.

SCHEDULE 2 — SLA

Platform Availability

Target Monthly Uptime: 99.5%

Service Credits

Monthly Uptime	Service Credit
99.0% – 99.49%	5% of monthly subscription fee
98.0% – 98.99%	10%
Below 98.0%	15%

Service credits shall constitute the Customer's contractual remedy for failure to meet the availability target, except where the failure results from circumstances for which the Provider remains liable under this Agreement.

Support Hours

Monday–Friday, 9:00 AM–6:00 PM IST

Critical incidents shall be supported outside standard support hours.

SCHEDULE 3 — COMMERCIAL TERMS

Annual Subscription Fee

INR 18,00,000 + applicable taxes

Implementation Fee

INR 2,00,000 + applicable taxes

Payment Terms

30 days from receipt of undisputed invoice

Additional User

INR 12,000 per additional user per year

Renewal

Subject to applicable renewal pricing communicated in accordance with Section 24.
